

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOYCE McIVER-COLE,
Plaintiffs,

-against-

THE CITY OF NEW YORK, FREDERIC DISLA, a
Police Officer from the 28th precinct
with Shield No 10123, MARCUS COLON, a
Police Officer from the 28th precinct
with Shield No 14439, RICKY RANSOM, a
Police Detective from the 28th precinct
detective squad with Shield No 7214,
JOHN DOE 1-10, names unknown but
believed to be police officers who were
involved in arrest of plaintiff,
Defendants.

SUMMONS

Plaintiff designates
NEW YORK COUNTY as the
place of trial.

The basis of venue is:
Plaintiff's residence
pursuant to CPLR 504(3)

Plaintiff resides at
2830 8TH Avenue
New York, NY 10035

-----X
To the above named Defendants:

You are hereby summoned to answer the complaint in this
action, and to serve a copy of your answer, or, if the complaint
is not served with this summons, to serve a notice of appearance
on the Plaintiff's attorneys within twenty days after the service
of this summons, exclusive of the day of service, where service
is made by delivery upon you personally within the state, or,
within 30 days after completion of service where service is made
in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the
relief demanded in the complaint.

Dated: Mineola, New York
December 29, 2016



Steve J Marchelos
MARCHELOS LAW P.C.
Attorneys for Plaintiff
JOYCE McIVER-COLE
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

TO:
CITY OF NEW YORK, 100 Church Street New York, NY 10007

FREDERIC DISLA, Shield No 10123
c/o 28th Police Precinct
2271-89 8th Ave.
New York, NY, 10027-5319

MARCUS COLON, Shield No 14439
c/o 28th Police Precinct
2271-89 8th Ave.
New York, NY, 10027-5319

RICKY RANSOM, Shield No 7214
c/o 28th Police Precinct
Detective Squad
2271-89 8th Ave.
New York, NY, 10027-5319

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

JOYCE McIVER-COLE,
Plaintiffs,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, FREDERIC DISLA, a
Police Officer from the 28th precinct with
Shield No 10123, MARCUS COLON, a Police
Officer from the 28th precinct with Shield
No 14439, RICKY RANSOM, a Police Detective
from the 28th precinct detective squad with
Shield No 7214, JOHN DOE 1-10, names
unknown but believed to be police officers
who were involved in arrest of plaintiff,
Defendants.

Index No:

-----X

JOYCE McIVER-COLE, by her attorneys, MARCHELOS LAW P.C.,
alleges the following, upon information and belief, as her
Complaint:

NATURE OF THE ACTION

1. This tort and civil rights action arises from the
defendants' unlawful and improper arrest, imprisonment and
malicious prosecution of plaintiff, accruing from October 21,
2015 through December 21, 2015;

2. Plaintiff seeks declaratory relief pursuant to CPLR
§3001 and 28 U.S.C. §2201, compensatory and punitive damages for
violation of plaintiff's civil rights pursuant to 42 U.S.C.
§§1981, 1983, 1985 and 1986 and an award of costs, disbursements
and attorneys fees under 42 U.S.C. §1988. Plaintiff also seeks
compensatory and punitive damages under common law State Tort
claims;

JURISDICTION

3. This action is predicated upon violations of plaintiff's Civil Rights protected under the United States Constitution inclusive of the Fourth, Fifth and Fourteenth Amendments actionable pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986 and the New York State Constitution, inclusive of Article I, §§ 1, 5, 8, 11, 12;

VENUE

4. That Venue for this action is placed in the County of New York because that is the county of occurrence of the acts alleged herein pursuant to CPLR 504(3);

NOTICE OF CLAIM

5. That on December 30, 2015, plaintiff caused a Notice of Claim to be served upon defendant, THE CITY OF NEW YORK;

6. The Notice of Claim was delivered to the person designated by law as a person to whom such claims may be presented and served;

7. The Notice of Claim was in writing, sworn to by or on behalf of the plaintiff and contained the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when the place where and the manner by which the claim arose, and the damage and injuries claimed to have been sustained;

8. That on or about March 21, 2016 through the present

day, defendant, CITY OF NEW YORK, failed to arrange for a 50-h hearing of the plaintiff after an adjournment was requested, and more than 90 days elapsed since plaintiff's request for an adjournment and, as such, the hearing, pursuant to General Municipal Law 50-h(2), has been waived;

9. The defendant, CITY OF NEW YORK, never requested a physical exam;

10. That at last thirty days have elapsed since the service of the notice of claim and that Defendant, CITY OF NEW YORK has either neglected, failed and/or refused to pay and/or adjust the claim within the statutory period of time;

11. This action has been started within one year and ninety days after the happening of the event upon which the claim is based;

PARTIES

12. Plaintiff, JOYCE McIVER-COLE, was and continues to be a resident of the State of New York, County of New York;

13. Defendant, the CITY OF NEW YORK is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York;

14. Defendant, the CITY OF NEW YORK, has established and maintains a police department which is an agency of the defendant, CITY OF NEW YORK;

15. At all times relevant, defendants the CITY OF NEW

YORK employed the individual defendants, FREDERIC DISLA, from the 28th precinct with Shield No 10123 (hereinafter "Disla"), MARCUS COLON, from the 28th precinct with Shield No 14439 (hereinafter "Colon"), RICKY RANSOM, from the 28th precinct detective squad with Shield No 7214 (hereinafter "Ransom") and JOHN DOE 1-10, true names unknown, but believed to be officers involved in the arrest of plaintiff;

16. At all times relevant, defendants, DISLA, COLON, RANSOM and JOHN DOE 1-10, were duly appointed and acting police officers of the CITY OF NEW YORK;

17. At all times relevant, the individual and JOHN DOE defendants were acting under the color of State Law;

18. At all times relevant, the individual and JOHN DOE defendants were acting both in their individual and official capacity as employees of defendant the CITY OF NEW YORK;

19. Notwithstanding the unconstitutional and unlawful conduct, the actions of the individual and JOHN DOE defendants were taken in the course of their duties and were incidental to their otherwise lawful functions as agents, servants and employees of the CITY OF NEW YORK;

FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

20. That on or about October 1, 2015, at approximately 6:00-6:15 p.m., at and about 7th Avenue and 115th Street, plaintiff was assaulted by an individual named Larry White while

plaintiff was sitting in her car;

21. That Larry White was an ex-boyfriend of plaintiff;

22. That this assault consisted of Larry White smashing plaintiff's car in various locations and breaking her windows;

23. That this incident was reported to the New York City Police Department and it is believed that one or more of the defendant officers named herein arrived at the scene, took photos of the plaintiff's vehicle and spoke to Larry White about the incident;

24. That the defendant police officers were aware that Larry White was the former boyfriend of plaintiff;

25. That no arrests were made at the scene by the defendant officers who arrived at the scene;

26. That later that day, at approximately 8:30 p.m., plaintiff was again assaulted by Larry White and others, who were believed to be family members of Larry White, while plaintiff was in a vehicle on 115th street at and about Lennox Avenue;

27. That sometime after this assault, at approximately 9:00 p.m., plaintiff went to the 28th precinct to report the assault and make out a complaint;

28. That while at the 28th precinct, plaintiff was caused to be arrested by defendant Disla predicated upon hearsay allegations provided to him by defendant Colon that plaintiff had menaced Larry White with a cane at 6:15 p.m. of that day at the

same location where plaintiff was assaulted by White on 7th Avenue;

29. Disla also charged plaintiff with assaulting a member of Larry White's family at 8:30 p.m. of that day at the same location where plaintiff was assaulted, for the second time, by White on Lennox Avenue;

30. That the allegations proffered by defendants were false;

31. That defendants knew these allegations were false based upon, among other things, the investigation that they conducted and video recordings of both incidents which established that plaintiff was the victim and that Larry White and his family members were the assailants;

32. That plaintiff was caused to be handcuffed and brought to Central Booking where she was incarcerated on these false charges for 11 hours;

33. That despite the false allegations, plaintiff was arraigned in Criminal Court on October 2, 2015 on two separate accusatory instruments, one charging her with menacing and the other, with assault;

34. That these criminal charges were dismissed on December 7, 2015 and December 21, 2015, respectively without condition as there was no evidence to establish that plaintiff had committed any crime;

35. That on October 14, 2015, at approximately 2:45 p.m., and prior to the dismissal of the criminal charges, defendants, inclusive of defendant, Ransom, called plaintiff to come down to the 28th precinct;

36. That upon arriving at the 28th precinct, plaintiff was arrested again, this time by defendant, Ransom, for purportedly making threatening calls and sending threatening text messages to Larry White;

37. That the factual allegations supporting this charge were that plaintiff allegedly made these communications to Larry White for approximately three weeks up to and including October 1, 2015;

38. That Larry White never related this complaint to the defendants on or prior to October 1, 2015 when he first filed a complaint with the 28th precinct;

39. That none of the defendants, including defendant Ransom, saw any proof of the existence of any of these threatening text messages allegedly sent by plaintiff;

40. That plaintiff did send any text messages or make any phone calls to Larry White;

41. That there was no proof that plaintiff sent any text messages or made any phone calls to Larry White;

42. That plaintiff voluntarily provided her telephone records for defendants to review in order to prove that she had

no communication with Larry White to disprove White's allegations;

43. That given the foregoing together with the prior history between plaintiff and Larry White, which was known to the officers of the 28th precinct, including Ransom, defendants should have known that Larry White was an unreliable witness under the circumstances;

44. That defendants, including defendant Ransom, knew, or should have known that there did not exist any probable cause to believe that plaintiff committed this, or any other crime;

45. That as a result of defendants' unlawful actions, plaintiff was caused to be arrested, handcuffed and incarcerated for 13 hours in Central Booking;

46. That on November 23, 2015, these criminal charges against plaintiff were dismissed without condition;

47. That the plaintiff was not doing anything unlawful prior to her arrests by defendants;

48. That the defendants, including Disla, Colon and Ransom; did not have probable or reasonable cause to believe that plaintiff had committed any crime;

49. That plaintiff was placed in handcuffs by the defendants, including defendants, Disla and Ransom;

50. That the arrests were initiated and continued without probable cause to believe any crime had been committed by the

plaintiff;

51. That plaintiff was confined to a cell in Central Booking for 11 hours and 13 hours, respectively.

52. That plaintiff had knowledge of these confinements;

53. That plaintiff did not consent to these confinements;

54. That plaintiff was prevented from leaving the confinements;

55. That during these confinements, plaintiff was fingerprinted and photographed by, and at the direction of, the defendants;

56. That plaintiff was incarcerated in an overcrowded jail cell at Manhattan Central Booking;

57. That the jail cell at Manhattan Central Booking was small, crowded, cold and unsanitary;

58. That Plaintiff sustained great fear, emotional harm, disgrace, embarrassment and loss of self esteem as a result of the aforesaid arrest and imprisonment by defendants as a result of the afore-referenced events including anxiety and stress;

59. Plaintiff suffered from a loss of liberty and deprivation of civil rights protected by the United States and New York State Constitution as a result of the afore-referenced events;

FIRST CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S SUBSTANTIVE AND PROCEDURAL DUE
PROCESS RIGHTS TO BE FREE FROM UNREASONABLE
SEARCHES AND SEIZURES UNDER THE FOURTH, FIFTH
AND FOURTEENTH AMENDMENTS TO THE UNITED
STATES CONSTITUTION PREDICATED UPON FALSE
ARREST AND IMPRISONMENT

60. Plaintiff repeats, reiterates and religious each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

61. As a result of the afore described actions, including the arrest and imprisonment of plaintiff without probable cause, the defendants individually deprived plaintiff, JOYCE McIVER-COLE, of her substantive and procedural due process *rights, privileges and immunities* secured by the Constitution and laws of the United States and the Fourteenth Amendment;

62. As a result of the afore described actions, these defendants individually deprived plaintiff, JOYCE McIVER-COLE, of her substantive and procedural due process *rights to be free from unreasonable search and seizures* secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

63. As a result of the aforescribed actions, these defendants individually deprived plaintiff, JOYCE McIVER-COLE, of her *right to liberty* without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

64. The afore described constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

65. The afore described acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

66. As a result of the foregoing, plaintiff has suffered damages;

**SECOND CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHTS UNDER THE FOURTH, FIFTH
AND FOURTEENTH AMENDMENTS TO THE UNITED
STATES CONSTITUTION PREDICATED UPON THE
MALICIOUS PROSECUTION OF PLAINTIFF WITHOUT
PROBABLE CAUSE**

67. Plaintiff repeats, reiterates and religious each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

68. As a result of the afore described actions, including the criminal prosecutions of plaintiff without probable cause, the defendants, individually and collectively, deprived plaintiff of the *rights, privileges and immunities* secured by the Constitution and laws of the United States and the Fourteenth Amendment;

69. As a result of the afore described actions, these defendants, individually and collectively deprived plaintiff of the *right to be free from unreasonable search and seizures*

secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

70. As a result of the afore described actions, these defendants, individually and collectively, deprived plaintiff of her ***right to liberty*** without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

71. The afore described constitutional violations are all actionable under and pursuant to 42 U.S.C. Sections 1981, 1983, 1985 and 1986;

72. The afore described acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

73. As a result of the foregoing, plaintiff has suffered damages;

**THIRD CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S SUBSTANTIVE AND PROCEDURAL DUE
PROCESS RIGHTS TO BE FREE FROM UNREASONABLE
SEARCHES AND SEIZURES, AS PROTECTED BY
ARTICLE 1 OF THE NEW YORK STATE CONSTITUTION
PREDICATED UPON THE ARREST AND IMPRISONMENT
OF PLAINTIFF WITHOUT PROBABLE CAUSE**

74. Plaintiff repeats, reiterates and religious each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

75. As a result of the afore described actions, including the arrest and imprisonment of plaintiff without probable cause,

the individual defendants individually deprived plaintiff of the **rights, privileges and immunities** secured by Article I, Sections 1, 5, 8, 11 and 12 the New York State Constitution;

76. As a result of the afore described actions, these defendants individually deprived plaintiff of the substantive and due process **right to be free from unreasonable search and seizures** secured by Article I, Sections 1, 5, 8, 11 and 12 of the New York State Constitution;

77. As a result of the afore described actions, these defendants individually deprived plaintiff of her **right to liberty** without due process of law secured by Article I Sections 1, 8, 11 and 12 of the New York State Constitution;

78. The afore described conduct by this defendant was instigated by these defendants for other than lawful reasons and without probable cause;

79. The afore described acts of these individual defendants was intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

80. The afore-described acts of defendants was performed under color of state law;

81. As a result of the foregoing, plaintiff has suffered damages;

FOURTH CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER
ARTICLE 1 OF THE NEW YORK STATE CONSTITUTION
PREDICATED UPON THE MALICIOUS PROSECUTION OF
PLAINTIFF WITHOUT PROBABLE CAUSE

82. Plaintiff repeats, reiterates and religious each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

83. As a result of the afore-described actions, including the criminal prosecution of plaintiff without probable cause, the defendants, individually, deprived plaintiff of the *rights, privileges and immunities* secured by the New York State Constitution including, but not limited to, plaintiff's rights to be free and secure in his person, house and effects from unreasonable seizures except on probable cause protected under Article I, Section 12 of the New York State Constitution;

84. As a result of the afore-described actions, including the criminal prosecution of plaintiff without probable cause, the defendants, individually, deprived plaintiff of his unabridged right to the privileges of citizens of the State of New York including plaintiff's *right to life, liberty and property*, protected by Article I Section 1 of the New York State Constitution;

85. That the prosecutions ended with a dismissal of all charges against the plaintiff. That these dismissals constitute

a favorable determination on the merits;

86. The afore described acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

87. As a result of the foregoing, plaintiff has suffered Damages;

FIFTH CAUSE OF ACTION FOR FALSE ARREST AND IMPRISONMENT

88. Plaintiff repeats, reiterates and religious each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

89. As a result of the foregoing, plaintiff was, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and imprisoned without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff;

90. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and imprisoned plaintiff without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff;

91. That the occurrence and injuries sustained by plaintiff were caused solely by the malicious, reckless, and/or

intentional conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without any provocation on the part of the plaintiff contributing thereto;

92. As a result of the foregoing, plaintiff has suffered damages;

SIXTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION

93. Plaintiff repeats, reiterates and religious each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

94. As a result of the foregoing, plaintiff was, without just cause or provocation, maliciously, recklessly, and/or intentionally charged and prosecuted with a crime without probable cause resulting in an unlawful deprivation of liberty and other serious harm to plaintiff;

95. That this prosecution and these charges were continued without just cause or provocation, and without probable cause resulting in an unlawful deprivation of liberty and other serious harm to plaintiff;

96. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally charged and prosecuted plaintiff without probable cause resulting in an

unlawful deprivation of liberty and other serious harm to plaintiff;

97. That the occurrence and damages sustained by plaintiff were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, including defendants, DISLA, COLON, RANSOM and JOHN DOE 1-10, without any provocation on the part of the plaintiff contributing thereto;

98. As a result of the foregoing, plaintiff has suffered damages;

**SEVENTH CAUSE OF ACTION FOR NEGLIGENT AND
INTENTIONAL INFLICTION OF EMOTIONAL HARM**

99. Plaintiff repeats, reiterates and religious each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

100. As result of the foregoing, defendants, individually and or vicariously, by and through their agents, servants and/or employees, intentionally, wantonly, recklessly, carelessly and/or negligently engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society thereby inflicting mental and emotional distress upon plaintiff;

101. As a result of the foregoing, plaintiff has suffered damages;

**EIGHTH CAUSE OF ACTION FOR NEGLIGENT
SUPERVISION AND RETENTION**

102. Plaintiff repeats, reiterates and religious each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

103. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently, and recklessly hired applicants for the position of police and corrections officers;

104. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently, and recklessly trained applicants for the position of police and corrections officers;

105. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly supervised, controlled, managed, maintained and inspected the activities of its police and corrections officers;

106. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, by its agents, servants and/or employees caused, permitted and allowed its police and corrections officers to act in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities;

107. That at all times hereinafter mentioned, the

defendant, CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly retained in its employ, police and corrections officers clearly unfit for the position who acted in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities prior to the date of the incident complained of herein;

108. That at the time and place aforesaid, the defendant CITY OF NEW YORK, by its agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally assaulted, battered, physically abused, attacked, threatened, intimidated, falsely arrested and imprisoned, plaintiff causing serious personal injury to plaintiff;

109. That the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of the defendant, CITY OF NEW YORK, its agents, servants and/or employees as set forth above, without any provocation on the part of the plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police and corrections officers and police and corrections departments;

110. As a result of the foregoing, plaintiff has suffered damages;

NINTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

111. Plaintiff repeats, reiterates, and religious each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

112. That the aforesaid occurrence and resulting injuries to plaintiff was due to the willful, wanton, reckless and/or malicious conduct of the individual defendants, DISLA, COLON, RANSOM and JOHN DOE 1-10;

113. That the aforesaid occurrence and resulting injuries to plaintiff were due to the conduct of this defendant which reflects an utter indifference to the safety and well being of others and specifically the safety and well being of plaintiff;

114. That the conduct of this individual defendant exhibited a reckless disregard for human life and the safety and well being of others and more particularly, for the life, safety and well being of plaintiff;

115. As a result of the foregoing, plaintiff has suffered damages;

116. As a result of the foregoing, defendants, DISLA, COLON, RANSOM and JOHN DOE 1-10, should be made to pay punitive damages to punish them for their wanton, reckless and malicious acts and thereby discourage these defendants and others from

acting in a similar way in the future;

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows:

(A) Declaratory relief as follows:

1. As to the first cause of action, a declaration that plaintiff's substantive and procedural due process rights to be free from unreasonable searches and seizures under the fourth, fifth and fourteenth amendments to the United States Constitution were violated predicated upon the unlawful arrest and imprisonment of plaintiff;
2. As to the second cause of action, a declaration that plaintiff's rights under the Fourth, Fifth and Fourteenth amendments to the United States Constitution were violated predicated upon the malicious prosecution of plaintiff without probable cause
3. As to the third cause of action, a declaration that plaintiff's substantive and procedural due process rights to be free from unreasonable searches and seizures, as protected by Article 1 of the New York State Constitution was violated predicated upon the arrest and imprisonment of plaintiff without probable cause;
4. As to the fourth cause of action, a declaration that plaintiff's right to be free from unreasonable searches and seizures under Article 1 of the New York State Constitution was violated predicated upon the malicious prosecution of plaintiff without probable cause

(B) As to the first through eighth causes of action, compensatory damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction;

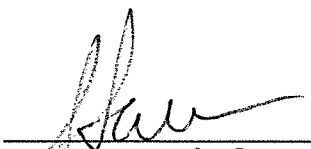
(C) As to the first through ninth causes of action, punitive damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction, by reason of the wanton, willful and malicious character of the conduct complained of herein;

(D) As to the first through ninth causes of action, an award to plaintiff of the costs and disbursements herein;

(E) As to the first through third causes of action, an award of attorney's fees as provided under 42 U.S.C. '1988; and

(F) Such other and further relief as this Court may deem just, proper and equitable

Dated: December 29, 2016
Mineola, New York



Steve Marchelos, Esq.
MARCHELOS LAW P.C.
Attorneys for Plaintiff
JOYCE McIVER-COLE
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

ATTORNEY VERIFICATION

Steve J Marchelos, an attorney duly admitted to practice law in the Courts of the State of New York affirms the following to be true under the penalties of perjury pursuant to CPLR 2106.

That affirmant is the attorney for the plaintiff in the action within; that affirmant has read the foregoing **COMPLAINT** and knows the contents thereof; that the contents are true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true; that the reason this verification is not made by plaintiff and is made by affirmant is that plaintiff is not presently in the county where the attorneys for the plaintiff have their office.

Affirmant further says that the source of deponent's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from conversations with said plaintiff and investigations made by affirmant's office on behalf of said plaintiff.

Dated: Mineola, New York
December 29, 2016



Steve J Marchelos

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JOYCE McIVER-COLE,
Plaintiffs,

-against-

THE CITY OF NEW YORK, FREDERIC DISLA, a Police Officer from the 28th precinct with Shield No 10123, MARCUS COLON, a Police Officer from the 28th precinct with Shield No 14439, RICKY RANSOM, a Police Detective from the 28th precinct detective squad with Shield No 7214, JOHN DOE 1-10, names unknown but believed to be police officers who were involved in arrest of plaintiff,
Defendants.

SUMMONS AND VERIFIED COMPLAINT

MARCHELOS LAW P.C.

ATTORNEYS FOR PLAINTIFF(S)

87 MINEOLA BLVD.

MINEOLA, NEW YORK 11501

(516) 248-0202

To:
Attorney(s) for Defendants

To:
Attorney(s) for Defendants

To:
Attorney(s) for Defendants

To:
Attorney(s) for Defendants

Service of a copy of the within

is hereby admitted.

Dated:

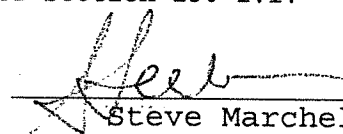
.....
Attorney(s) for

Attorney Certification Pursuant to 22 NYCRR Section 130-1.1.A

The undersigned, an attorney duly admitted to practice law in the Courts of the State of New York, respectfully affirms the truth of the following statement under the penalty of perjury pursuant to CPLR §2106

The undersigned attorney hereby certifies that to the best of his/her knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the paper(s) or the contents herein are not frivolous as defined in Subsection C of Section 130-1.1.

Dated: December 29, 2016


Steve Marchelos